

23PSCV01080 23PSCV01080

County: los-angeles

Division: Civil Law and Motion

Department: H

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Case Number: 23PSCV01080 Hearing Date: August 21, 2026 Dept: H

Nottoli

v. The Claremont Hacienda et al., Case No. 23PSCV01080

ORDER

ON MOTIONS IN LIMINE

Defendant

initially filed 15 motions in limine. Following a court-ordered meet-and-confer session, the parties entered into a stipulation substantially narrowing the disputed issues such that the only disputed motions in limine are Defendant's Motions in Limine Nos. 2, 7, and 12; as such, the Court denies Defendant's remaining motions in limine as moot. The Court appreciates the parties' efforts to informally resolve the evidentiary issues raised in the motions in limine.

Defendant's

Motion in Limine No. 2

Defendant

moves to exclude expert testimony regarding Defendant's intent, motivation, or state of mind. The motion is denied without prejudice. The motion as presented is overly broad and lacking in specificity. Defendant provides no specific expert testimony or opinions for the Court to evaluate in context. While Defendant is correct that experts may not testify as to ultimate conclusions or offer speculative opinions about Defendant's subjective intent or motivation, without knowing what specific opinions Defendant seeks to exclude, the motion as presented is denied. Defendant may raise specific objections at the time of trial.

Defendant's

Motion in Limine No. 7

Defendant

moves in limine to preclude evidence of violation of internal policies. The motion is denied. The Court determines that while not dispositive, evidence of Defendant's internal policies and procedures, and evidence of staff deviations from those policies, is relevant to the jury's evaluation of negligence and elder neglect. Plaintiff cites controlling California authority holding that an employee's failure to follow employer-promulgated safety rules is admissible as evidence of negligence, including *Dillenbeck v. City of Los Angeles* (1968) 69 Cal.2d 472, 478. Moreover, the Court determines that the probative value of this evidence is not substantially outweighed by any risk of undue prejudice or jury confusion. Accordingly, the motion is denied, but this ruling does not preclude Defendant from objecting at trial to specific questions or exhibits on other evidentiary grounds at the time of trial.

Defendant's

Motion in Limine No. 12

Defendant

moves in limine to preclude any reference to Defendant's budgets, financial condition, corporate structure, profits, or fees paid to employees and managers. The motion is denied as presented inasmuch as the Court will not issue a blanket exclusion order as to financial information during the liability phase of trial. Specifically, the Court is inclined to Plaintiff to introduce such evidence for the limited purpose of showing motive, staffing levels, and resource allocation, as well as to provide context relevant to Plaintiff's claims of neglect. However, the Court will not permit Plaintiff to introduce evidence of Defendant's current financial condition, net worth, or ability to pay punitive damages during the liability phase of trial; should the case proceed to a punitive-damages phase, evidence of Defendant's financial condition may be presented at that time. While the motion is denied as presented, the Court's ruling does not preclude Defendant from raising specific objections at trial under Evidence Code Section 352 or other evidentiary grounds if particular financial or budget-related evidence is cumulative, misleading, unduly prejudicial, or lacking in foundation; the Court merely determines at this juncture that a blanket exclusion would be overbroad and would foreclose potentially relevant liability evidence.